

Line 1

Case Name: *Mary Volz v. R J Cassibba, et al.*

Case No.: 23CV413053

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants R J Cassibba, Victoria L Cassibba, and R J and Victoria Cassibba Revocable Trust (“Defendants”) move for Summary Judgment or, in the alternative, Summary Adjudication in favor of Defendants and against Plaintiff Mary Volz (“Plaintiff”) on the grounds that there is no triable issue of material fact and Defendants are entitled to judgment as a matter of law. Notice of Motion (the “Motion”) at 1:26-2:4 (filed: Jan. 28, 2026). The Motion is made under Code of Civil Procedure Section 437c on the grounds that Defendants did not own, possess, or control the public sidewalk where Plaintiff alleges she fell, and Defendants had no actual or constructive notice of any alleged dangerous condition. *Id.* at 2:6-9. Plaintiff cannot establish the essential elements of her premises liability claim against Defendants. *Id.* at 2:9-10.

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff brings this civil action against Defendants R.J. Cassibba, Victoria L. Cassibba, and the R.J. Cassibba and Victoria L. Cassibba Revocable Trust (collectively, “Defendants”).

On March 17, 2023, Plaintiff filed a complaint against Cassibba,¹ asserting claims for premises liability for negligence and dangerous condition of public property. Plaintiff alleged in her complaint that on May 4, 2022, she was walking northbound on the sidewalk of Church Street in Morgan Hill, California, when she tripped on a protruding segment sidewalk outside 90 E. Edmundson Avenue, causing her injuries of a broken nose and severe bruising on her face. (Complaint, p. 4.)

¹ Plaintiff’s complaint also named the City of Morgan Hill as a defendant and asserted a cause of action of general negligence against the City of Morgan Hill. On December 1, 2025, Plaintiff filed a request for dismissal with prejudice as to the City of Morgan Hill. Plaintiff is continuing the action against the remaining Defendants.

On January 28, 2026, Defendants filed this Motion under Code of Civil Procedure section 437c. Plaintiff filed an Opposition on June 16, 2026 (“Opposition”), and Defendants filed a Reply on June 26, 2026 (“Reply”).

Analysis of Motion

I. Legal Standard on Motion for Summary Judgment/Summary Adjudication

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

“A defendant seeking summary judgment must show that at least one element of the cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72, internal quotation marks and citations omitted, emphasis added.) When a defendant moves for summary judgment, “its declarations and evidence must either establish a complete defense to plaintiff’s action or demonstrate the absence of an essential element of plaintiff’s case. If plaintiff does not counter with opposing declarations showing there are triable issues of fact with respect to that defense or an essential element of its case, the summary judgment must be granted.” (*Gray v. America West Airlines, Inc.* (1989) 209 Cal.App.3d 76, 81 (*Gray*).)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844, internal quotation marks omitted.) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

“Summary adjudication works the same way, except it acts on specific causes of action or affirmative defenses, rather than on the entire complaint. (Code Civ. Proc. § 437c, subd. (f).) A summary adjudication is properly granted only if a motion therefore completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (§ 437c, subd. (f)(1).) Motions for summary adjudication proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc. § 437c, subd. (f)(2).)” (*Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 464.)

II. Premises Liability

Civil Code section 1714 subdivision (a) establishes that a land possessor is responsible for harm caused by his or her failure to exercise ordinary care in the management of his or her property. (Civ. Code, §1714, subd. (a).) “The proper test to be

applied to the liability of the possessor of land...is whether in the management of his property he has acted as a reasonable man in view of the probability of injury to others...[.]” (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156, quoting *Rowland v. Christian* (1968) 69 Cal. 2d 108, 119, superseded by statute on other grounds as stated in *Moses v. Roger-McKeever* (2023) 91 Cal.App.5th 172, 187, fn. 6.)

“Under the common law, a landowner does not have any duty to repair abutting sidewalks along a public street, and does not owe any duty to pedestrians injured as a result of a defect in the sidewalks.” (*Jordan v. City of Sacramento* (2007) 148 Cal.App.4th 1487, 1490, citing *Schaefer v. Lenahan* (1944) 63 Cal. App. 2d 324, 326.) Street and Highways Code section 5610 “imposes a *duty of repair* on the abutting property owners for defects in sidewalks, regardless of who created the defects, but does not of itself create *tort liability* to injured pedestrians or a *duty to indemnify* municipalities, except where a property owner created the defect or exercised dominion or control over the abutting sidewalk.” (*Jordan v. City of Sacramento*, *supra*, 148 Cal.App.4th at p. 1490, emphasis in original.)

But a possessor of land may be liable for injuries caused by a defect in an adjacent public sidewalk where the landowner created the defect. (*Moeller v. Fleming* (1982) 136 Cal.App.3d 241, 245 [a trier of fact could find that the property owner’s tree created the uplifted sidewalk where plaintiff fell such that owner’s motion for summary judgment was denied].)

In determining a property owner’s liability for defects in a sidewalk, courts closely analyze the owner’s notice of the issue, historical care and control for the sidewalk, and specifically with respect to cases where a plaintiff alleged that a tree’s roots caused a sidewalk defect, the degree to which the owner planted, maintained, or exercised control over the offending tree, regardless of who formally owns the tree. (*Bean v. City of Thousand Oaks* (2025) 114 Cal.App.5th 775, 786 [no liability for owner who owned tree that may have caused sidewalk defect because city “exercised crucial element of control” over the tree due to undisputed evidence that the City had trimmed and inspected the tree and no evidence owner had maintained or controlled the tree], *Alpert v. Villa Romano Homeowners Assn.* (2000) 81 Cal.App.4th 1320, 1336-1337 [property owner who had actual notice of a sidewalk defect and planted and maintained all of the trees which caused the city-owned sidewalk to be uplifted was liable], *Jones v. Deeter* (1984) 152 Cal.App.3d 798, 805-806 [any dangerous condition in sidewalk caused by the trees was attributable to the city, not to the owners of the abutting property, because the city planted the trees and performed all necessary maintenance].)

In this Motion for Summary Judgment, Defendants argue that Defendants cannot be liable for Plaintiff’s injuries because:

- as parties do not dispute that the location where Plaintiff fell was a sidewalk owned by the City of Morgan Hill,
- Defendants had no actual or constructive notice of a dangerous condition in the sidewalk, and

- any duty to inspect, repair, or maintain the sidewalk lay solely with the City of Morgan Hill.

(Motion at 2:9-15.)

a. Cause of Sidewalk Defect

Defendants argue that to the extent a dangerous condition existed in the sidewalk, the City of Morgan Hill created that dangerous condition through its own shoddy repair work. (*Id.* at p. 8:18-19.) In support of this argument, Defendants point to Plaintiff's deposition testimony wherein she described tripping where asphalt met concrete, and asserts that this proves that Plaintiff fell "where the sidewalk ramping met the repair area." (Motion for Summary Judgment, p. 8:15-16.) Defendants further state that "[t]he photographs attached to Plaintiff's deposition show this transition area created by the City's repair work." (*Id.* at p. 8:16-17.)

After carefully reviewing Defendants' argument and evidence, the Court rules that Defendants fail to meet the burden to show the nonexistence of a triable issue of material fact because a reasonable fact finder could find that a tree owned by Defendants created the defect in the sidewalk such that tort liability would attach. Parties do not dispute that Plaintiff caught her right big toe on an area where asphalt met concrete on the sidewalk. But this alone does not establish that only the City of Morgan Hill's repair work could have caused the sidewalk defect: it does not follow that asphalt meeting concrete is *prima facie* evidence of a repair effort, let alone that the City of Morgan Hill did that repair effort, or that the repair effort was "shoddy." Notably, Defendants' Separate Statement makes no mention of any repair effort by the City. (See *Parsons v. Estenson Logistics, LLC* (2022) 86 Cal.App.5th 1260, 1265, fn. 5 (*Parsons*) [if it is not set forth in the separate statement, it does not exist].)

Defendants also argue that photographs attached to Plaintiff's deposition show the City's repair work. Defendants submit the Declaration of Claudia Lozano in Support of Motion for Summary Judgment ("Lozano Decl."). Excerpts of the transcript of the deposition of Plaintiff are attached to the declaration, (Lozano Decl., Ex. A.) but Exhibit A does not include any photos attached to Plaintiff's deposition. Defendants' evidence does not support the position that only the City of Morgan Hill could have caused the dangerous condition by repairing the sidewalk, and Defendants do not present any other evidence to support the position that Defendants could not have been responsible for the defect in the sidewalk.

In sharp contrast, Plaintiff's documents show the existence of a triable issue of material fact. Plaintiff argues in opposition that Defendants own one of two trees adjacent to the sidewalk where Plaintiff fell, and that the tree owned by Defendants could have created a dangerous condition in the sidewalk such that Defendants would be liable to Plaintiff. (Opposition, p. 4:7-28.) Plaintiff submits the Declaration of Mary Volz in Support of Plaintiff's Opposition to Defendants' Motion for Summary Judgment ("Volz Decl."), in which Plaintiff Volz states the following: "At approximately 9:00 p.m. on May 4, 2022, I tripped and fell as I was walking on the Church Street sidewalk near East

Edmundson Avenue in Morgan Hill. The defect over which I tripped was a sidewalk offset caused by tree roots growing under the sidewalk.” (Volz Decl., ¶ 3.) The Volz Declaration also states that Exhibit 1 to the declaration are “true and correct copies of two photographs that my daughter took on or about May 6, 2022, depicting the incident location.” (Volz Decl., Ex. 1.)



This photograph from Exhibit 1 is an image of a sidewalk with one tree on each side of a height differential in the sidewalk. A building is visible in the upper right third of photo. There is a tree between the building and the sidewalk and another tree is visible in the foreground of the image on the side of the sidewalk opposite from the building, closer to the street. The portion of the sidewalk visible in the left quadrant of the image is at a lower elevation than the portion of the sidewalk on the right quadrant of the image. Where the two differently elevated portions of sidewalk meet, there is a gap in the sidewalk and a strip of asphalt in that gap.

In reply, Defendants argue that “the exhibits that Plaintiff attaches to her declaration are hearsay and should not be considered. Exhibit 1 is a photograph not taken by Plaintiff and being offered to explain the location of her fall. Plaintiff already testified regarding where she fell. The location is not in dispute.” (Reply, p. 4:5-8.) But Exhibit 1 is not being offered to explain the location of Plaintiff’s fall, but rather to show that there are triable issues of material fact as to the extent to which the adjacent trees caused the dangerous condition of the sidewalk at the location where Plaintiff fell. (Opposition, p. 4:7-28.) Accordingly, the Court rejects Defendants’ argument and finds that this photograph does raise triable issues of material facts.

In the Declaration of Keri Russell in Support of Plaintiff’s Opposition to Defendants’ Motion for Summary Judgment (“Russell Decl.”), the Maintenance Manager for the City of Morgan Hill Public Services Department states that “[a]t 90 E. Edmundson Avenue the City of Morgan Hill owns and maintains park strip trees located between the

street and the sidewalk. Any tree located on the other side of the sidewalk is not owned by the City and is on private property.” (Russell Decl., ¶¶ 1, 2.)

Plaintiff has thus presented evidence that there is a tree on either side of the location where Plaintiff fell, the City of Morgan Hill denies owning and maintaining one of those trees and contends that the tree belongs to the property owner, and that this tree may have caused the dangerous condition in the sidewalk where Plaintiff fell. Plaintiff has thus established that there is a triable issue of material fact as to whether a tree created the defect in the sidewalk and whether Defendants maintained and controlled that tree such that Defendants could be liable to Plaintiff.

Plaintiff also asserts the existence of another disputed fact with respect to the ownership of one of the trees, claiming that Defendants deny owning the tree and that Defendants have claimed that the City of Morgan Hill owns both trees. (Opposition, p. 4:7-28.) Plaintiff’s evidence to support this assertion is Exhibit 3 to the Declaration of Louis S. Abronson in Support of Plaintiff’s Opposition to Motion for Summary Judgment (“Abronson Decl.”), which declarant states are “true and correct excerpts from R.J. Cassibba’s responses to Form Interrogatories, Set Two. Portions of the document have been highlighted for ease of reference. (The responses from Victoria Cassibba and the R J and Victoria Cassibba Revocable Trust were identical.)” (Abronson Decl., Ex. 3.)

In Exhibit 3, among the highlighted portions are: “Responding party owned the land on which TREE #2 was located at the time of the incident. Responding party did not own TREE #2...Responding party owned the land on which TREE #2 was located at the time of the incident. Responding party did not own TREE #2. The City of Morgan Hill owned and controlled TREE #2.” (*Ibid.*) The Court was not provided with a means of ascertaining what Defendants were referring to as “TREE #2” and as such cannot determine if Defendants deny ownership of one or both of the trees such that ownership of the trees is a disputed fact. While Plaintiff’s Opposition includes a photo wherein the tree on the side of the property is labeled “Tree #2” and the tree in between the sidewalk and the public street is labeled “Tree #1” (Opposition, p. 4:13-22.), the Court was not provided with the Form Interrogatories that Plaintiff sent to Defendants and thus cannot conclude that Defendants were referring to the same “Tree #1” and “Tree #2” as Plaintiff was referring to in her opposition papers.

Nevertheless, the City of Morgan Hill denies ownership and control over one of the trees that may have caused the defect in the sidewalk and that tree is located on Defendants’ property. Thus, there is a triable issue of material fact as to ownership of the tree on Defendants’ property. Defendants have not established that any particular tree or the prior repair by the City caused the defect in the sidewalk. Accordingly, Defendants have not established that the tree on their property did not cause the defect in the sidewalk.

The cause of the dangerous condition at the location where Plaintiff fell, and Defendants’ potential liability in creating that dangerous condition, raise disputes of fact—rendering Summary Judgment inappropriate. Accordingly, Defendants’ Motion for Summary Judgment is **DENIED**.

b. Actual or Constructive Notice

Defendants argue that they cannot be held liable for Plaintiff's injuries in the absence of actual or constructive notice. (Motion for Summary Judgment, p. 7:13-14.) But where a plaintiff presents evidence from which a reasonable inference could be drawn that the dangerous condition on the premises was created by the defendant, knowledge of the condition is imputed to the defendant. (*Getchell v. Rogers Jewelry* (2012) 203 Cal.App.4th 381, 385.) Here, Plaintiff presented evidence from which a reasonable inference could be drawn that a tree owned by Defendants caused the sidewalk defect and thus knowledge of the condition is imputed to Defendants such that evidence of actual or constructive notice is *not* required. (Volz Decl., ¶ 3 [Plaintiff states she fell on a sidewalk offset caused by tree roots growing under the sidewalk]; Volz Decl., Ex. 1 [photo described above showing that there was one tree on either side of the sidewalk where Plaintiff fell]; Russell Decl. ¶ 2 [City of Morgan Hill states that one of the trees is not owned by the City].)

Moreover, Defendants do not meet the first-step burden with respect to this element. Defendants' undisputed material facts indicate only that Plaintiff herself did not inform Defendants of the defect in the sidewalk. (See Defendants' Separate Statement, Undisputed Material Fact ("UMF") No. 11.) But it is also undisputed that Plaintiff did not recall ever previously walking in the specific area where she tripped. (*Id.* at UMF No. 14.) Thus, Defendants have not shown that they did not learn of the defect from another source. (See *Parsons, supra*, 86 Cal.App.5th at p. 1265, fn. 5 [if it is not set forth in the separate statement, it does not exist].) Hence, the Court cannot sustain Defendants' Motion for Summary Judgment on the basis that Defendants demonstrated lack of actual or constructive notice of a sidewalk defect.

c. Duty to Inspect, Repair, or Maintain

Defendants also argue that they had no duty to inspect, repair, or maintain the sidewalk and thus cannot be liable for Plaintiff's injuries. (Motion for Summary Judgment, p. 7:17-20.) But Plaintiff argues *not* that Defendants had a duty to inspect, repair, or maintain the sidewalk where Plaintiff fell, but rather that Defendants had a duty to use reasonable care in the management of their own property to avoid creating a dangerous condition in the adjacent sidewalk. (Opposition, p. 6:15-16.) As discussed above, there remains a triable issue of material fact as to whether a tree on Defendants' property could have caused the sidewalk defect. Thus, Defendants' argument about the duty to inspect, repair, or maintain the sidewalk is not a defense to Plaintiff's action or a demonstration of the absence of an essential element of Plaintiff's case. (*Gray, supra*, 209 Cal.App.3d at p. 81.) The Motion for Summary Judgment cannot be granted on this ground.

d. Motion for Summary Adjudication

In the alternative, Defendants also request Summary Adjudication. (Motion for Summary Judgment, p. 2:2-3.) **But** Defendants make no specific arguments at all in support of Summary Adjudication, let alone regarding any specific Cause of Action. So

Defendants have forfeited any arguments they might have had for Summary Adjudication. (*See WFG National Title Ins. Co. v. Wells Fargo Bank, N.A.* (2020) 51 Cal.App.5th 881, 895 [arguments unsupported by legal analysis or record citations are deemed forfeited].)

To the extent that in the alternative the Motion sought Summary Adjudication, the Motion for Summary Adjudication is **DENIED**.

Conclusion & Order

Accordingly, Defendants' Motion for Summary Judgment or Summary Adjudication is **DENIED**.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Vidushi Savant v. Vikas Kedia, et al.*

Case No.: 23CV416999

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., Bansi, Inc., and Vikas Kedia (“Defendants”) demurs to the Second Amended Complaint (“SAC”) of Plaintiff Vidushi Savant (“Plaintiff”) as follows:

1. Defendant Vikas Kedia (“Kedia”) demurs under Code of Civil Procedure Sections 339 and 430.10(e) to the Fifth Cause of Action for Breach of Contract under *Marvin v. Marvin* on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendant Kedia and the claim is barred by the statutes of limitations.
2. Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., Bansi, Inc., and Vikas Kedia demur under Code of Civil Procedure Section 430.10(e) to the Seventh Cause of Action for Civil Conspiracy to Commit Fraud on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendants.
3. Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., and Bansi, Inc., demur under Code of Civil Procedure Section 430.10(e) to the Sixth Cause of Action for Fraudulent Concealment on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendants.
4. Defendant Vikas Kedia demurs under Code of Civil Procedure Section 430.10(e) to the Eighth Cause of Action for Declaratory Relief Re: Validity of the RISTC Trust on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendant Kedia.
5. Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., and Bansi, Inc., demur under Code of Civil Procedure Section 430.10(e) to the Ninth Cause of Action for Constructive Trust on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendants.

Notice of Demurrer (the “Demurrer”) at 2:5-3:12 (filed: Dec. 8, 2025).

In addition, Defendants move to strike the SAC as follows:

1. The entire SAC.
2. The Fifth Cause of Action for Breach of Contract under *Marvin v. Marvin* (SAC, ¶¶ 53-56, pp. 19:13-20:8).

3. The Seventh Cause of Action for Civil Conspiracy to Commit Fraud (by Concealment) (SAC, ¶¶63-66, pp. 21:10-27).
4. The Eighth Cause of Action for Declaratory Relief Re: Validity of the RISTC Trust (SAC, ¶¶ 67-75, pp. 22:3-23:18).
5. “2. Enforcement of Marvin Agreement ¶ a. Damages for Breach of Agreement; and ¶ b. Imposition of Constructive Trust on All Assets Fraudulently Transferred[.]” (SAC, Prayer, ¶ 2, p. 24:23-25).
6. “Declaratory Relief ¶ For a declaration of validity of the RISTC Trust[.]” (SAC, Prayer, ¶ 3, p. 24:26-27).

Notice of Motion to Strike (the “Motion to Strike”) at 2:5-20 (filed: Dec. 8, 2025).

Defendant’s Motion to Strike is brought on the grounds that the above matter is improper and is not drawn in conformity with California law, including but not limited to Code of Civil Procedure Sections 339, 436, 472, 472a, and relevant case law. Motion to Strike at 2:21-23. Specifically, Plaintiff’s SAC is untimely and exceeds the scope of leave to amend as set forth in the Court’s previous ruling. *Id.* at 2:23-24. The SAC also seeks recovery of damages arising from a time-barred claim based on breach of an implied contract that is deficiently pleaded. *Id.* at 2:24-26.

The Demurrer and Motion to Strike came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules in this Order on Demurrer and Motion to Strike as follows.

I. Factual Allegations of the SAC

In September 2009, Plaintiff and Kedia began cohabitating and later married in India on December 15, 2010, in accordance with Hindu religious traditions. On July 5, 2013, Kedia and Plaintiff entered into a civil marriage in the United States. The family court determined that the official date of marriage was July 5, 2013, a decision that was affirmed on appeal. The parties did not have any pre-nuptial agreement. They separated in 2019, and the court dissolved the marriage on May 2, 2024. The parties have one minor child together. (SAC ¶ 26.)

During their marriage four properties were purchased that are at issue here: the Portola residential property at 211 Portola Court in Los Altos, the Covington residential property at 355 Covington Road in Los Altos, the El Camino commercial property at 4966 El Camino Real #223-226 in Los Altos, and the Fifth Avenue commercial property at 112-120 Fifth Avenue in Redwood City. (SAC ¶ 23)

Kedia allegedly siphoned community property income away from Plaintiff’s view and consolidated under his sole, direct or indirect, control assets that should have been owned by and under control of the community, by placing those assets within entities

created by him or at his instruction to be owned by persons loyal to him such as his parents or relatives. Kedia repeatedly told Plaintiff that the Properties were community property and that the shell entities were created solely for tax and liability purposes. (SAC ¶¶ 27-29, 32)

While not an attorney, Kedia established the Oak View Law Group ("OVLG") as its sole incorporator and officer. Through OVLG, Kedia directed creation of the shell entities CIS, STAMP, and BANSI that hold title to the properties at issue. Kedia also controlled the RISTC Trust for which OVLG is the trustee. The SAC alleges that the RISTC Trust was formed to misappropriate and convert community assets and assets acquired while the parties were living together. (SAC ¶¶ 9, 10, 28)

On September 5, 2025, a jury convicted OVLG of ten felony counts of unauthorized use of personal identifying information and two misdemeanor counts for unauthorized practice of law and false advertising. As a co-defendant, Kedia was granted mental health diversion and the charges against him were dismissed on May 21, 2025, upon completion of his mental health treatment. Kedia's wrongful and fraudulent conduct as alleged in the SAC is consistent with his conduct as alleged in the criminal proceeding. (SAC ¶¶ 2, 3, 4)

Plaintiff initiated this action on May 30, 2023, and amended her complaint on January 24, 2025, and November 6, 2025. The operative SAC alleges causes of action for

1. First Cause of Action: Quiet Title As To Portola Property
2. Second Cause of Action: Quiet Title as to Covington Property
3. Third Cause of Action: Quiet Title as to El Camino Real Property
4. Fourth Cause of Action: Quiet Title as to Fifth Avenue Property
5. Fifth Cause of Action: Breach of Contract under *Marvin v. Marvin*
6. Sixth Cause of Action: Fraudulent Concealment
7. Seventh Cause of Action: Civil Conspiracy to Commit Fraud by Concealment
8. Eight Cause of Action: Declaratory Relief Re Validity of the RISTC Trust
9. Ninth Cause of Action: Constructive Trust.

SAC at ¶¶ 40-79 (filed: Nov. 6, 2025).

II. Legal Standards

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state

sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

“A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 213-214.) In ruling on demurrers, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

Under California law, even if a demurrer is sustained, leave to amend the complaint is routinely granted. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof....” (Code Civ. Proc. § 435.) “The court may, upon a motion made under Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading; (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436.) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc. § 437, subd. (a).)

III. Judicial Notice

Plaintiff seeks Judicial Notice of the following:

- Exhibit A - Court’s Minute Order dated September 19, 2025;
- Exhibit B - The Felony Complaint filed by the District Attorney *People v. Oak View Law Group*, Santa Clara County Superior Court Case No. C2003831;
- Exhibit C - The Reporter’s transcript of the proceedings dated March 19, 2024, in *People v. OVLG*;
- Exhibit D - The District Attorney’s trial brief in *People v. OVLG* action, filed on August 4, 2025;
- Exhibit E - Excerpts from the trial proceedings in *People v. OVLG*;

- Exhibit F - The reporter's transcript of District Attorney's closing argument in *People v. OVLG*;
- Exhibit G – The Minute Order in *People v. OVLG* recording the Jury Verdict dated September 5, 2025.

Plaintiff's request for Judicial Notice is **GRANTED IN PART** as follows. Under Evidence Code §§ 452 and 453, the Court may take Judicial Notice of the *existence* of judicial opinions and court documents including the results reached in those documents, e.g., in orders, statements of decision, and judgments, *but* cannot take judicial notice of the truth of hearsay statements in decision or court files, including pleadings, testimony, or statements of fact. (See, *Williams v. Wraxall* (1995) 33 Cal. App. 4th 120, 130, fn. 7, citing *Gilmore v. Superior Court* (1991) 230 Cal. App. 3d 416, 418.). Accordingly, the Court takes Judicial Notice of the existence of Exhibits A-G and the results reached therein.

IV. Analysis of the Demurrer

A. The Demurrer to the Fifth Cause of Action Against Kedia for Breach of Contract is Overruled.

Defendant Kedia demurs to the Fifth Cause of Action arguing that (1) the claim is time-barred since the applicable statute of limitation expired on July 4, 2015, two-years after the parties ceased cohabitating; and (2) Plaintiff fails to allege specific terms of the alleged oral agreement or specific damages she claims to have suffered. Kedia emphasizes that under *Marvin v. Marvin* (1976) 18 Cal.3d 660, the implied agreement to equally share property existed only during the parties' cohabitation from September 2009 through July 4, 2013. (Motion at 7:21-8:19)

In Opposition, argues that (1) her SAC adequately pleads facts for all elements of breach of contract under *Marvin*, (2) the discovery rule and the continuing violation doctrine delayed accrual of the statute of limitation, (3) Kedia is equitably estopped from invoking the statute of limitation when he actively prevented discovery of his breach, and (4) the SAC does not affirmatively establish untimeliness. (Opposition at 11:15-13:11).

The Court agrees with Plaintiff.

First, the necessary elements of a breach of contract cause of action are: (1) the existence of the contract; (2) the Plaintiff's performance or excuse for nonperformance; (3) the defendant's breach; and (4) resulting damage. (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178.) "An oral contract may be pleaded generally as to its effect, because it is rarely possible to allege the exact words." (*Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640.)

The SAC alleges that between September 2009 and July 4, 2013, Plaintiff and Kedia were an unmarried cohabitating couple who implicitly agreed to pool earnings, share property equally, hold property jointly, and treat income, assets, and properties as community property. These allegations identify the essential terms: equal sharing of

property acquired during cohabitation. The SAC further alleges Plaintiff's performance: supporting Kedia in creating income-generating software and websites, serving as HR manager of GRMTech, and contributing to the household. Breach is alleged through Kedia's diversion of assets into shell entities and denial of Plaintiff's ownership interest. Damages are alleged through deprivation of Plaintiff's share of the Properties and income from community businesses. (SAC ¶¶ 26, 27-38, 54) These allegations sufficiently *plead* the necessary elements of a breach of contract cause of action.

Second, *Marvin* stands for the proposition that basic contracting principles apply equally to unmarried, cohabitating couples, and California will enforce agreements between such parties so long as they comply with the standard principles of contract formation and rest on lawful consideration. Like most contractual relationships, *Marvin* agreements “may be express or implied.” (*Marvin, supra*, 18 Cal.3d 660, 686, fn.16.) In other words, the law of contract, not the Family Code, governs cohabitation arrangements that do not qualify as putative marriages. As such, actions to enforce oral cohabitation agreements must be filed within two years of the breach. (See Code. Civ. Proc. § 339(1).)

Kedia's untimeliness argument fails for several reasons. Plaintiff has alleged sufficient facts establishing the requirements for delayed accrual under the discovery rule, which applies when the Defendant not only breached the contract in secret but also Defendant's act constituting the breach prevented Plaintiff from discovering it. (See, *Gryczman v. 4550 Pico Partners, Ltd.*, (2003) 107 Cal. App. 4th 1, 5-6) Plaintiff here has also alleged ongoing acts of breach, including transfer of the Covington Property to WAGONFLOW in July 2023. Each act of continued retention and concealment constitutes a new breach of the agreement that triggers its own limitation period. (See, *Eloquence Corp. v. Home Consignment Ctr.*, (2020) 49 Cal. App. 5th 655, 661)

Last but not least, the SAC does not affirmatively show that the claim is untimely. A demurrer based on the ground of statute of limitations at the pleading stage will be sustained *only* where the dates in the SAC *on its face* demonstrate that the cause of action is barred by the applicable statute of limitations. (See, *Vaca v. Wachovia Mortg. Corp.* (2011) 198 Cal.App.4th 737, 746.). And as the SAC does not on its face show that it is barred by the applicable statute of limitations, Kedia demurer on this ground is **OVERRULED** at the pleading stage.

For all those reasons, Defendant's Demurrer to Plaintiff's Fifth Cause of Action for Breach of Contract is **OVERRULED**.

B. The Demurrer to the Sixth Cause of Action Against All Defendants for Fraudulent Concealment is Overruled.

The elements of fraudulent concealment are that: (1) defendant concealed or suppressed a material fact; (2) defendant was under a duty to disclose the fact to plaintiff; (3) defendant intentionally concealed or suppressed the fact with intent to defraud; (4) plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed fact; and (5) as a result, plaintiff sustained damage. (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.) While fraud must be pled with

particularity, the standard is relaxed where, as here, it appears from the nature of allegations that the defendant must necessarily possess full information concerning the facts that defendant *concealed*. (*Alfaro v. Community Housing Improvement System & Planning Assn, Inc.* (2009) 171 Cal.App.4th 1356, 1384.)

Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., and Bansi, Inc., (the “Entity Defendants”) demur to this cause of action arguing that Plaintiff fails to allege specific facts establishing (1) how Kedia misappropriated community assets, (2) when Kedia and CIS admitted to CIS’ ownership of the Portola Property, (3) Defendants’ intentional failure to disclose various facts, (4) entity Defendants are the alter egos of Kedia, and (5) entity Defendants owed Plaintiff any duty. (Motion at 10:22-11:2) The Court is unpersuaded by the Entity Defendants’ argument.

The key issue is whether the SAC well pleads facts that trigger the Entity Defendants’ duty to disclose. The Court’s prior order found this duty was not adequately alleged in the First Amended Complaint. (RJN Ex. A) *But* the SAC has cured this deficiency through detailed alter ego allegations.

Two requirements must be met to invoke the alter ego doctrine: (1) there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist; and (2) there must be an inequitable result if the acts in question are treated as those of the corporation alone. (See, *Sonora Diamond Corp. v. Super. Ct. (Sonora Union High School Dist.)* (2000) 83 Cal.App.4th 523, 538-539.) To determine whether sufficient unity of interest and ownership exists between two entities, the court considers commingling of assets, identical equitable ownership, identical directors and officers, and use of one as a mere shell or conduit for the affairs of the other. (*Ibid.*)

Here, the SAC sets forth ten specific indicia of alter ego in Paragraph 21: Kedia controlling business and affairs of all entity defendants; commingling funds and diverting corporate assets for personal use; disregarding legal formalities; using same offices and employees; using entities as mere shells or conduits; and using entities to shield personal obligations. (SAC ¶ 21) These are well pleaded facts, not mere legal conclusions.

The SAC goes beyond conclusory labels by alleging specific conduct: Kedia’s mother served as nominal incorporator of CIS, STAMP, and BANSI using Kedia’s contact information and OVLG’s address; OVLG served as trustee of the RISTC Trust; the court-appointed Receiver found Kedia controlled GRMTEch, OVLG, and likely other family businesses as master manipulator; emails documented fund flows among OVLG, BANSI, Savant Care, GRMTEch, and NII at Kedia’s direction, including a \$480,000 wire transfer Kedia personally directed; and OVLG’s criminal conviction confirmed Kedia’s de facto control. (SAC ¶¶ 3, 9, 10, 20-22, 28, Ex. A)

The SAC further identifies specific entities Kedia created, specific means of creation, specific mechanisms of control, specific financial transactions reflecting commingling, independent corroboration through the Receiver’s findings and OVLG’s criminal conviction, Kedia’s use of shell corporations to steal community property from

his spouse. (SAC ¶¶ 28-35)

These factual allegations satisfy the pleading standard requiring specific facts showing unity of interest and ownership and an inequitable result. As such, sufficient facts are pleaded to establish Kedia is the alter ego of the Entity Defendants, and thus that his spousal fiduciary duty attaches to the Entity Defendants.

With alter ego establishing duty, the SAC satisfies the remaining elements. Material fact concealed: the true ownership structure of the Properties, specifically that CIS, WAGONFLOW, STAMP, and BANSI were not community property corporations, but entities designed to hold title away from Plaintiff. Intent to defraud: creation of entities specifically to hold title away from Plaintiff, timing of creation (STAMP one day before deed recording, BANSI weeks before closing), and weaponizing CIS to evict Plaintiff. Plaintiff's ignorance: unaware Properties were not titled as community property because Kedia repeatedly assured her they were. Damages: deprivation of ownership interests in all four Properties. (SAC ¶¶ 27, 28, 38, 39, 42, 58, 59, 62.)

Accordingly, the Entity Defendants' Demurrer to Plaintiff's Sixth Cause of Action for Fraudulent Concealment is **OVERRULED**.

C. The Demurrer to the Seventh Cause of Action Against All Defendants for Civil Conspiracy is Overruled.

Defendants collectively demur to the Seventh Cause of Action for Civil Conspiracy by arguing that Plaintiff fails to allege a viable claim because (1) civil conspiracy is a legal doctrine and not a cause of action, (2) Plaintiff fails to allege any facts showing Defendants' involvement in the formation and operation of the conspiracy, (3) Plaintiff fails to allege any facts that Defendants had actual knowledge that a tort was planned. (Motion at 8:22-9:19) Plaintiff responds that the conspiracy claim is tethered to the underlying concealment tort and functions to impose liability on participants in the coordinated scheme. (Opposition at 13:15-26)

Civil conspiracy is a legal doctrine that imposes liability on people who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration. (*City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 211-212.) "Strictly speaking, . . . there is no separate tort of civil conspiracy, and there is no civil action for conspiracy to commit a recognized tort unless the wrongful act itself is committed and damage results therefrom." (*Mehrtash v. Mehrdash*, (2001) 93 Cal. App. 4th 75, 82.) In other words, standing alone, a conspiracy does not engender tort liability and must be activated by an actual, committed tort. Therefore, for a civil conspiracy claim to survive a demurrer, Plaintiff must allege three core elements: (1) the formation of a group of two or more people who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages. (*City of Industry, supra*, 198 Cal.App.4th at 212.)

Plaintiff has tethered her civil conspiracy claim to the underlying fraudulent

concealment claim, which thereby imposes liability on participants in the coordinated scheme. The Court has already ruled above that the underlying fraud claim (i.e., the Sixth Cause of Action) is well pleaded. Likewise, the SAC sufficiently pleads the elements of conspiracy. Plaintiff alleges Defendants acted in concert to perpetrate the fraud – specifically, that they knowingly and willfully conspired and agreed among themselves to fraudulently conceal from Plaintiff that all the properties had been transferred to entities created by Vikas, and that each one of the Defendants affirmatively engaged in conduct to deprive Plaintiff of her community property rights. (SAC ¶¶ 29, 64–65.)

Accordingly, Defendants’ demurrer to the Seventh Cause of Action for Civil Conspiracy is **OVERRULED**.

D. The Demurrer to the Eighth Cause of Action Against Kedia, OVLG, & RISTC Trust for Declaratory Relief is Overruled.

“The fundamental basis of declaratory relief is the existence of an actual, present controversy over a proper subject. The language of Code of Civil Procedure section 1060 appears to allow for an extremely broad scope of an action for declaratory relief: Any person interested under a written instrument ... or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.” (*Nede Mgmt. Inc. v. Aspen American Ins. Co.* (2021) 68 Cal.App.5th 1121, 1130; internal citation and quotes omitted) Procedurally, with exceptions, a demurrer must be overruled if an actual controversy is alleged, even if Plaintiff is not entitled to a judgment in his/her favor. (*Id.* at 1132.)

Defendant Kedia demurs to this Eighth Cause of Action for Declaratory Relief by arguing that Plaintiff has failed to plead that declaratory relief would “have any practical consequences.” (Motion at 9:22-27) The Court rejects this argument.

The SAC alleges an actual, present controversy i.e. the parties dispute over the validity of the RISTC Trust. Defendants have allegedly used the RISTC Trust as the vehicle through which STAMP and CIS hold title, and Plaintiff challenges the trust’s legal existence. The SAC alleges nine specific grounds for invalidity, including lack of contemporaneous authentication of signatures, neither grantor nor original trustee being Delaware residents, California law governing title to California real properties, no documentation establishing when assets were transferred, trust formed to hold substantially all of Kedia’s assets, no showing of solvency for asset-protection trust, no provision exempting assets from creditors’ claims, trust created and administered solely for grantor’s benefit by agent or related party trustee, and OVLG serving as trustee. (SAC ¶ 69.) So, as a practical matter, the outcome will determine title to four properties—which is indeed a practical consequence.

Accordingly, Defendants’ Demurrer to Plaintiff’s Eighth Cause of Action for

Declaratory Relief is **OVERRULED**.

E. The Demurrer to the Ninth Cause of Action Against All Defendants for Constructive Trust is Sustained Without Leave To Amend.

The Entity Defendants demur to this cause of action on the grounds that:

- (1) constructive trust is a remedy and not an independent cause of action, and
- (2) Plaintiff has failed to properly plead a fraudulent concealment claim against them.

(Motion at 11:5-22)

The Entity Defendants are right that constructive trust is an equitable remedy, not a substantive claim for relief. “A constructive trust is an involuntary equitable trust created by operation of law as a remedy to compel the transfer of property from the person wrongfully holding it to the rightful owner. The essence of the theory of constructive trust is to prevent unjust enrichment and to prevent a person from taking advantage of his or her own wrongdoing.” (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP*, (2007) 150 Cal. App. 4th 384, 398; internal citations and quotes omitted.)

Plaintiff neither disputes nor even addresses this issue in her Opposition that constructive trust is *not* an independent cause of action but rather a remedy. Failure to address an issue in the memorandum operates as a concession on the merits of that issue. (See California Rules of Court Rule 3.1113(a).

Moreover, because constructive trust is not a cause of action but rather a remedy, there are no facts that Plaintiff could plead in a further amended complaint that would save this claim at the pleading stage. As this claim, on its face, is incapable of amendment to remedy this defect as a matter of law, the Court will not give Plaintiff leave to amend this claim.

Accordingly, Defendants’ Demurrer to Plaintiff’s Ninth Cause of Action for Constructive Trust is **SUSTAINED WITHOUT LEAVE TO AMEND**.

V. Analysis of the Motion to Strike Portions of the SAC

A. The Motion to Strike based on the ground that the SAC is untimely is Denied.

Defendants argue that the SAC should be stricken in its entirety because it was filed forty-eight days after the September 19, 2025 Minute Order that granted twenty days leave to amend, and (2) Plaintiff’s newly added causes of action for breach of contract, civil conspiracy, and declaratory relief exceed the scope of the Court’s leave to amend. Defendants emphasize that the Court’s leave to amend was limited to Plaintiff’s causes of action for fraudulent concealment and constructive trust. (Motion to Strike at 7:19-27)

Defendants' arguments fail. As Plaintiff points out, the Court's Minute Order expressly stated that "The Court will prepare the Order," thus indicating that a separate formal order would follow. (RJN, Ex. A) The Minute Order's language unambiguously indicated that the Court intended to issue a formal written order distinct from the minute order itself. Thus, it is reasonable to conclude that where a minute order expressly contemplates a separate formal order, the procedural deadline tied to that order does not commence until the formal order is entered. And because no formal order was entered, the twenty-day amendment period never commenced. Thus, the SAC filed on November 6, 2025, was timely.

Even assuming *arguendo* that the Minute Order itself triggered the amendment deadline, the Court can and will exercise its broad discretion to consider the late-filed pleading. (See *Keeble v. Brown* (1954) 123 Cal.2d 126, 129 ["The trial court has a wide discretion in the granting of amendments to pleadings."]; see also *Gitmed v. General Motors Corp.* (1994) 26 Cal.App.4th 824, 828 [a court has discretion to strike an amended complaint that is not timely filed after a demurrer is sustained with leave to amend]; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29, 32 ("Rigid rule following is not always consistent with a court's function to see that justice is done."). The extraordinary circumstances here—OVLG's criminal conviction on September 5, 2025, just fourteen days before the Court's ruling, and the extensive trial evidence produced in August and September 2025 establishing Kedia's alter ego relationship with the Entity Defendants—justify the brief delay that Defendant object to here.

Moreover, Defendants have not shown unfair prejudice from the amendment. No trial date has been set, discovery remains in its earliest stages, and the new causes of action arise from the same core facts at issue since the original Complaint was filed in May 2023. Where litigation is at a preliminary stage and claims arise from the same nucleus of operative facts, the court's discretion to permit amendment is at its broadest.

Accordingly, Defendants' Motion to Strike the SAC in its entirety on this ground is **DENIED**.

B. The Motion to Strike the Causes of Action for Breach of Contract, Civil Conspiracy, and Declaratory Relief based on the ground that the SAC exceeds the scope of leave to amend is Denied.

When a demurrer is sustained with leave to amend, the court's order grants permission to the pleader to amend the cause of action to which the demurrer has been sustained rather than giving the plaintiff a license to add any potential cause of action. (See, *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023; *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.) But to the extent that a new cause of action directly responds to the court's reason for sustaining the earlier demurrer, the new cause of action may be proper. (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.)

Here, Defendants argue that Plaintiff's newly added causes of action for breach of contract, civil conspiracy, and declaratory relief exceed the scope of the Court's leave to amend and should be stricken. Defendants emphasize that the Court's leave to amend was

limited to Plaintiff's causes of action for fraudulent concealment and constructive trust. (Motion at 8:2-22)

Defendants' argument fails because the new claims arise from the identical nucleus of operative facts addressed by the Court's prior ruling and were necessitated by evidence that emerged during the criminal trial. The Court sustained the Entity Defendants' demurrer to the First Amended Complaint ("FAC") because the FAC lacked alter ego allegations and failed to establish a duty owed by the Entity Defendants to Plaintiff. (RJN, Ex. A) The Court agrees with Plaintiff that her new claims in the SAC are direct outgrowths of curing those deficiencies. None of these claims introduces a separate dispute; each is a facet of the single scheme alleged since the inception of this litigation.

For instance, the Civil Conspiracy Cause of Action, as noted above, is not a freestanding tort but a legal doctrine imposing liability on persons who share a common plan in perpetrating a tort. It is inextricably linked to the fraudulent concealment cause of action the Court expressly granted leave to amend. The criminal trial evidence showing that OVLG agents managed bank accounts for all Kedia family entities, that funds flowed among entities at Kedia's direction, and that OVLG employees executed intercompany transfers involving STAMP, BANSI, CIS, and other entities supplied the factual basis for alleging that Defendants acted in concert to conceal community property. Pleading this coordinated conduct as a Civil Conspiracy theory of liability was a necessary consequence of curing the alter ego deficiency that the Court had identified.

Likewise, the Declaratory Relief Cause of Action challenging the RISTC Trust's validity flows directly from the Fraudulent Concealment allegations and the alter ego theory. OVLG served as trustee of the RISTC Trust, which owned STAMP and CIS—entities holding two of the four properties at issue. The criminal trial evidence confirmed Kedia's control over the trust and OVLG's role as trustee. A judicial determination of the trust's validity is essential to the concealment and quiet title claims the Court permitted to proceed, because if the trust is invalid, the properties revert to community property status.

Likewise, the Breach of Contract claim under *Marvin* addresses the pre-marriage cohabitation period from September 2009 through July 4, 2013, alleging an implied agreement to pool earnings and share property equally. This claim is integral to Plaintiff's theory that assets acquired during cohabitation were diverted into the same shell entities at issue in the fraudulent concealment claims.

Accordingly, Defendants' Motion to Strike Plaintiff's Causes of Action for Breach of Contract, Civil Conspiracy, Declaratory Relief, and any damages arising therefrom is **DENIED**.

C. The Motion to Strike on multiple grounds the Fifth Cause of Action for Breach of Contract is Denied.

Defendants move to strike the Fifth Cause of Action on multiple grounds, e.g., that it (1) exceeds the scope of the Court's leave to amend, (2) is deficiently pleaded, and (3) is

time-barred. (Motion at 8:25-9:4). In doing so, Defendants incorporate the arguments presented in their Demurrer.

As analyzed in detail in this Order above, the Court rejects each and every one of Defendants' arguments challenging the Fifth Cause of Action at the pleading stage.

Accordingly, Defendants' Motion to Strike Plaintiff's Fifth Cause of Action for Breach of Contract is **DENIED**.

Conclusion & Order

Regarding Defendants' Demurrer to Plaintiff's Second Amended Complaint, the Demurrer is **OVERRULED** in all respects *except* only as to the Ninth Cause of Action for Constructive Trust for which the Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Regarding Defendant's Motion to Strike Plaintiff's Second Amended Complaint, the Motion to Strike is **DENIED** in all respects.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *Vidushi Savant v. Vikas Kedia, et al.*

Case No.: 23CV416999

See Line 2 above for complete tentative ruling on both the Demurrer and Motion to Strike.